THE INSTITUTIONAL FRAMEWORK OF SPACE ACTIVITIES IN OUTER SPACE

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Since the inception of space activities, States have been the initiators, be it either on an exclusive level as is the case in some countries, or on a partial level as is the case in other countries, where States nonetheless keep primary control in specified sectors (notably military or scientific) while sharing other sectors with private operators.

The role of States was predominant during the "Cold War Period", which was characterized by a rivalry between the USSR and the USA, on the level of prestige as much as on the level of military abilities. Nowadays, the competition between the two great powers in that sector no longer has the same reasons to exist, and one can see that a world-wide cooperation among States is being developed. Nonetheless in other sectors of activity, there is a fierce competition among the actors of the private sector.

States are, of course, free to organize within their national framework the implementation of obligations contracted under international agreements. From the actual world practice, we notice that a great variety of situations exist resulting from the diversity of solutions given to the obligation by the State.

It does not seem that this question has been the subject of very advanced studies from a legal standpoint. We must, however, mention a study that was done on this subject by the Center of Study and Research on Space Law (CERDE) of Paris (France), in cooperation with the European Center for Space Law (ECSL)[1].

We therefore think it might be useful to evoke this subject in this special issue of the *Journal of Space Law*, and we are happy to celebrate its 25th anniversary.

The present article will first recall the evolution of the role of States in the exercise of space activities (I), then will briefly set out the different ways which can be used by the States in order to comply with their obligations relative to the national organization of space activities in their respective countries (II). It will finally describe the conditions of the States' intervention in the exercise of these activities (III).

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1 LE CADRE INSTITUTIONNEL DES ACTIVITES SPATIALES DES ETATS, collective work in French and English, under the supervision of Simone COURTEIX, with a foreword by Mr Hubert CURIEN (Editions A. Pedone, Paris 1997 - I.S.B.N. 2-233-00315-2).

Parts of this work can be found in the communication of Michel BOURELY and Simone COURTEIX in the Proceedings of Colloquium of the International Institute of Space Law held in China in 1996 which was published in 39 PROC. COLLOQ. L. OUTER SPACE 235 (Am. Inst. Aeronautics & Astronautics 1997).

I - The Evolution of the Role of States in the Exercise of Space Activities

Contrary to what happened in other high-tech sectors (like nuclear energy or computer science), it is the State's intervention, since the beginning, which has helped the creation and development of space activities.

Must we remind the reader that the first Sputnik was launched in 1957 during the very official International Geophysical Year and that the Americans wanted to reply quickly to this launch for reasons of national security, as much as for their concern of national prestige?

Must we also remind the reader that the big States had to define a national space policy, and thus develop space programs to implement this policy?

Must we finally remind the reader that the development of space techniques and their dual character has, in essence, inevitably brought States to abandon their initial state objectives and to go from purely military or scientific applications to other applications, and that in some countries, certain applications were later taken over in their entirety by the private sector?

The State's preponderance and its concern to serve the public's interest, have evolved with the years, not only following technical progress in the area of space, but also because of changes that eventually took place in political regimes, in constitutional institutions, and in foreign relations in different countries.

We must also not neglect the role played by the international community within the UN, which tried to fix rules for the exploration and use of outer space and to put them in writing in international agreements. It follows that States are now forced to conform to these rules and to ensure their implementation by the persons or entities for which they are responsible under international law.

The States' intervention in space activities is expressly foreseen by articles VI, VII and VIII of the 1967 Outer Space Treaty to which, it shall be recalled, nearly all the states of the world - including all the space powers - are parties.

As it is asserted in this text, it belongs to the States, and only to them, to:

- bear, on one hand, international, political and legal responsibilities for all national space activities - whether they are carried out by private or public organisms - and to ensure that the provisions of the treaty are enforced;
- on the other hand, to authorize and supervize the space activities of non-governmental entities placed under their jurisdiction;
- finally, to make sure that the international organizations they are members of, comply with the provisions of the treaty.

Consequently, the parties to the 1967 Treaty, whatever their direct involvement in outer space is, must participate in the elaboration and the enforcement of international rules applicable to space activities, when their object is to govern the exercise of these activities. The State's

intervention may take various shapes. We need to emphasize however the fact that the organization of space activities is not linked to the existence or absence, in a given country, of a specific space legislation. Such a legislation does not exist in all space powers, and the State's intervention will thus be based on the existing general texts.

II - The Organization by States of their Space Activities

In some countries, we find that national specialized structures responsible for space activities are generally called "Agencies". They can take various legal shapes and have very diversified powers according to the kind of space activities undertaken by the State itself. In other countries, there are no agencies of this kind, and the State's responsibility is shared between the different existing national entities, which are most often departments of Ministries.

The choice between these two formulas depends first of all on the political regime of each country and, therefore, on the power of intervention given to the public authority. It also depends on the existence and vitality of the private sector, as well as on the degree of freedom granted to it by the State.

Various criteria may be used to describe the present state of national institutions responsible for space activities in the world: We may obviously choose a geographical criterion and make a list of all that exists in every country from all five continents on the Planet. But it would seem preferable to take a more legal approach and make the distinction between:

- countries that have a specific space legislation <u>and</u> that have created a specialized structure, which may or may not be called an Agency;
- countries that have a specific space legislation, <u>but</u> that did not create an Agency;
- countries that do not have a specific space legislation, nor an Agency, but that use the standard public affairs' administration mechanisms to execute, regulate and control space activities themselves. We need to take note of this last situation, but emphasize the fact that it does not mean that a specific national legislation would not be useful in these countries to either complement or modify the national legislation and try to make it more adapted to the exercise of space activities.

1/ Specialized structures

A specialized structure in space matters, generally called "Agency," exists in various countries.

The oldest and most renowned agency is NASA (USA), but we may also mention the CNES (France), BNSC (United Kingdom), NASDA (Japan), and more recently the ASI (Italy), DARA (Germany), RKA (Russia). Argentina, Australia, Brazil, Canada, India, and Indonesia also have structures similar to that of a Space Agency. China has both a National Civil Administration for space activities and an industrial company for the

marketing of launchers. Since the disintegration of the USSR, certain Eastern European States (such as Poland, Romania, Hungary, the Czech Republic and Ukraine) have created autonomous structures for their space activities.[2]

The creation of such specialized structures dates back to different times and was done using various methods. It may result from a legislator's text or a simple administrative decision. It can consist on the creation of a specific department in a Ministry, or a more or less autonomous public law entity, or even a commercial company.

The financing itself may take various forms: it may include public funds as well as private ones, but in different proportions depending on the country. However, the functions and objectives of these agencies are almost identical everywhere:

- on the one hand, exercising functions of reflection and coordination, by preparing the governments' decisions within the framework of the elaboration of a national space policy, by defining the opinion of their country in the international instances, and finally by insuring the promotion of the national space industry.
- on the other hand, supervising the national space effort, either by carrying out projects themselves, or by having the industry execute them under contract, or even by favoring the creation of subsidiary organisms in charge of commercializing the space activities.
- finally, ensuring certain functions in the space field itself: the delivery of licences, the supervision of beneficiaries, the registration of space objects.

2/ The general structures

The existence of general structures does not impede the intervention, sometimes very active, of State authorities in the exercise of space activities. Their powers in these matters depend on the type of political regime of every country and it is naturally stronger in a presidential regime than in a parliamentary one. This power is, of course, rarely exercised personally or directly by the heads of State; they usually act through several Councils, Agencies or Committees, more or less consulting. We find examples of these situations in the more important space powers, such as the USA and Russia.

In the countries that did not think it necessary to create an Agency, for example Belgium, Spain, Denmark or Switzerland in Europe, or where political authorities don't intervene in this area, it is the general administrative structures, in other words the Ministries, that manage the space activities.

In any case, in all the countries, whether there is an Agency or not, the many ministerial departments (such as defence, foreign affairs,

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2 Numerous details on these organisms can be found in the work cited above in note 1.

industry, research,...) are the ones involved in space activities, and they advise their governments through several consulting Committees.

III - The Conditions of the States' Intervention in the Exercise of Space Activities

Naturally, States will try for a long time, to keep under their direct control certain activities that are either related to their sovereignty, or whose nature does not interest the private sector, either through Departments or specialized Agencies. But the State has to keep control of certain space activities which have consequences on the common interest. Finally, there is the case when space activities are carried out by several States within the framework of an international cooperation.

1/ All activities linked to the sovereignty of the State, such as National Defence or the exploration of outer space policy in general, are under the State's responsibility, and not under the private sector's.

This is evident when it comes to military activities, which have moreover played a decisive role in the development of civil activities. The same can be said about activities that are related solely to the exploration of outer space, and not the use of it, in which the political element - for example the concern for the prestige of the nation - is predominant and therefore dictates certain choices. Finally, this is also the case for scientific activities which, at the stage of fundamental research, cannot be undertaken by the private sector because they are by definition foreign to the concept of profit.

All these activities are thus financed by public funds and receive a more or less high level of priority according to the political regimes.

2/ If we consider the activities which are, because of their nature, the private sector's responsibility, we have to remember that with the exception of, until a recent date, the USSR, almost all of the States thought that it was not only inevitable but highly desirable to have a private sector with commercial purposes, besides the public sector. This has been the case both in States that believe in the principle of free enterprise and in those who only wish to maintain the presence of the private sector in areas where the intervention of the public sector is not justified anymore.

Nonetheless, the private sector has benefited from the State's support, especially in the beginning, whether it be in the way of military orders or the encouragement of research and development, often subsidized by the State.

The economic and financial importance of space investments and the consequences of space activities on the international level are the reasons for which a few countries thought it necessary to establish a political and legal framework for private commercial space activities. This was the case in the US, with the Comsat Act, the Launch Service Act and the Remote Sensing Act.

National legislations applicable to the private sector were also enacted in the United Kingdom and Sweden.

In countries where such legislation does not yet exist, the general texts, or those relating to certain specified organisms, still allow the State to fulfill its obligations under the 1967 Treaty.

3/ Finally, some programs or projects may be above the technical and financial resources of a given State. In this case, the State must turn to

international cooperation. This cooperation may be informal or it can take place within the framework of institutions created especially for this purpose.

We know that the role of international cooperation in space activities was a decisive one since the beginning, due in part to the nature of these activities. This is why it is expressly recommended in article I of the Outer Space Treaty of 1967.

This cooperation is first of all carried out within the framework of bilateral or multilateral intergovernmental relations, through the conclusion of many agreements between Space Agencies, which sometimes give way to the creation of international structures. These forms of cooperation were often used at the beginning of space activities, and we can mention the numerous agreements between the US and the USSR, or between the US and some European countries.

Cooperation in space also permitted the conclusion of agreements for the execution of joint projects, such as the French and German project Symphonie and more recently the agreements on the Space Station between the US, Europe, Canada, Japan and Russia.

But it is mostly institutional cooperation that was developed in the form of the creation of a certain number of international intergovernmental organizations. Some have a specialized character, whether it be in global telecommunications (INTELSAT, INMARSAT, INTERSPUTNIK) or regional telecommunications (EUTELSAT, ARABSAT, PALAPA), meteorology (EUMETSAT) or scientific research (INTERCOSMOS).

Others have more general powers, like the European Space Agency (ESA), which is mainly competent for science, research and development.

International cooperation has also taken place in the private sector, through the conclusion of agreements between States, industries and commercial companies, as we have seen in Russia after 1991.

Conclusion

From the preceding text, we can draw three conclusions:

The first conclusion is that the institutional framework for the exercise of space activities is characterized by a great diversity. Indeed, it goes from a mere recourse to existing institutions, to the creation of agencies exclusively devoted to space matters. The status of these agencies - when they exist - is itself extremely diversified.

The second conclusion is that few countries have enacted a specific space legislation, and this for very different reasons. Moreover, we have recognized that such legislations do not have as their sole purpose the creation of an institutional framework, but also the completion of national existing legislation in order to take into account the legal specificities of space activities.

The third conclusion is that States are and remain the actors of the exploration and use of outer space, but their role, because of the emergence of private activities, is now becoming secondary. On the other hand, States are and remain bound by the 1967 Treaty for the authorization and the supervision of space activities carried out in outer space.